

CUI

Controlled by: DON, USMC, I&L HCA
Controlled by: MCIWEST-RCO
CUI Category(ies): PROCURE
Limited Dissemination Control: DL ONLY
POC: Sgt Holback, Charles (POC- 760-763-5647)

MEMORANDUM TO THE FILE

Subj: DETERMINATION THAT ONLY ONE SOURCE IS REASONABLY AVAILABLE FOR A FAR PART 12 ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

I. BACKGROUND:

1. FAR 6.103-1 Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 12.204(b), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement (or portion of the requirement to be sole-sourced) is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

The requirement is to provide television telecommunication services in support of 1st Marine Expeditionary Forces (I MEF) aboard Marine Corps Base Camp Pendleton, CA. I MEF utilizes the television programming to gather information from local, national, and world-wide news organizations to obtain an operational picture to help formulate strategies and responses in case of deployment.

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING:

A. X *ONLY ONE RESPONSIBLE SOURCE:*

1. RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.
2. EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.
3. X OTHER REASONS.

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At this time, we are unable to transition to the MC West GPON C-ISP PaaS solution. While this remains our preferred long-term approach, MC-West has not yet established the required entry points at multiple locations across the installation. Until those access points are fully deployed and operational, the GPON/C-ISP service cannot support our current mission requirements.

Additionally, we currently maintain an active contract and existing cable infrastructure that ensures continuity of operations and prevents service disruption. Premature termination of these services would introduce significant operational risk and could leave critical assets without reliable connectivity.

Given these conditions, we require continuation of cable services on a sole-source basis to Cox, as they are the only provider with existing infrastructure integrated into the installation's hard-wired television system and are authorized under the MCI-West franchise agreement to deliver television services aboard Camp Pendleton.

For these reasons, we are requesting that this requirement be awarded on a sole-source basis to ensure continuity of service.

B. ____ *BRAND NAME*

Item required must be a brand name, product, or feature of a product, particular to one manufacturer.

C. ____ *URGENT AND COMPELLING*. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance:
3. Explanation of why delivery/commencement of services by the date mentioned above is required:

V. CERTIFICATIONS:

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A. Technical / Requirements Certification: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

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Signature

Maj Weaver, Melaine/760-763-3397
Name (Printed) / Phone #

20260410
Date

B. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

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Signature

Nina Kanoa / 760-763-6860

Name (Printed) / Phone #

Date

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